

HOUSE No. 3307

The Commonwealth of Massachusetts

PRESENTED BY:

Mike Connolly

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act banning hostile architecture targeting unhoused individuals.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 3307

By Representative Connolly of Cambridge, a petition (accompanied by bill, House, No. 3307) of Mike Connolly for legislation to prohibit the construction of publicly accessible buildings or structures designed or intended to prevent unhoused individuals from sitting or lying on the building or structure at street level. State Administration and Regulatory Oversight.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3005 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act banning hostile architecture targeting unhoused individuals.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 40 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 70. (a) For purposes of this section, the term “Hostile architecture” shall, unless
4 the context clearly requires otherwise, mean any building or structure that is designed or
5 intended to prevent unhoused individuals from sitting or lying on the building or structure at
6 street level; provided, that hostile architecture shall not include design elements intended to
7 prevent individuals from skateboarding or rollerblading or to prevent vehicles from entering
8 certain areas.

(b) A municipality shall not install or construct hostile architecture in any publicly accessible building or on publicly accessible real property owned by or under the control of the municipality.

SECTION 2. Chapter 7C of the General Laws is hereby amended by adding the following section:-

Section 73. (a) For purposes of this section, the term “Hostile architecture” shall, unless the context clearly requires otherwise, mean any building or structure that is designed or intended to prevent unhoused individuals from sitting or lying on the building or structure at street level; provided, that hostile architecture shall not include design elements intended to prevent individuals from skateboarding or rollerblading or to prevent vehicles from entering certain areas.

(b) The commissioner shall not install or construct hostile architecture in any publicly accessible capital facility or on publicly accessible real property under the commissioner’s control or supervision.

SECTION 3. Chapter 161A of the General Laws is hereby amended by adding the following section:-

Section 53. (a) For purposes of this section, the term “Hostile architecture” shall, unless the context clearly requires otherwise, mean any building or structure that is designed or intended to prevent unhoused individuals from sitting or lying on the building or structure at street level; provided, that hostile architecture shall not include design elements intended to prevent individuals from skateboarding or rollerblading or to prevent vehicles from entering certain areas.

(b) The authority shall not install or construct hostile architecture in any publicly accessible mass transportation facilities under the authority's control or supervision.

SECTION 4. Chapter 265 of the General Laws is hereby amended by adding the following section:-

Section 73. (a) For purposes of this section, the term "Hostile architecture" shall, unless the context clearly requires otherwise, mean any building or structure that is designed or intended to prevent unhoused individuals from sitting or lying on the building or structure at street level; provided, that hostile architecture shall not include design elements intended to prevent individuals from skateboarding or rollerblading or to prevent vehicles from entering certain areas.

(b) Whoever installs or constructs hostile architecture on any publicly accessible real property shall be punished by a fine of not more than \$500 for each day in violation of this section.